HEADNOTE

"1. Having regard to Art. 84 EPC and Art. 123(3) EPC, the requirement of legal certainty disallows the introduction of an evident lack of clarity into the patent claims if this lack is suitable to create variable scopes of protection depending on selective limiting effects that could be derived from the description without excluding a violation of Art. 123(3) EPC.
2. A document uploaded to a standardisation body's document-management server is available to the public where at least one member of the public could obtain access without being bound by an express or implicit obligation of confidentiality. The applicant's own identification of the upload date as the publication date may corroborate public availability but does not dispense with the assessment of access and confidentiality."

COURT
Local Division in Milan

PROCEEDINGS
Infringement action and Counterclaim for revocation

PATENT
EP 3 076 673
Decoding and encoding of pictures of a video sequence

KEYWORDS
claim clarity | legal certainty | prior art | public availability | confidentiality

SUMMARY
The Local Division in Milan ruled on an infringement action and counterclaim for revocation. The patent at issue relates to decoding and encoding of pictures of a video sequence. According to the headnotes of the decision, patent claims must maintain legal certainty under the EPC. If introducing clarity issues into claims creates variable scopes of protection, this violates the requirement of legal certainty. Such variable scopes cannot be resolved by selectively relying on description content without breaching the prohibition on added matter. Furthermore, a document uploaded to a standardisation body's server becomes publicly available in specific circumstances. Public availability occurs when at least one member of the public could access it without confidentiality obligations. The applicant's own identification of an upload date as publication date may support a finding of public availability. However, this identification alone does not eliminate the need to assess whether actual access and confidentiality restrictions existed.